

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 28, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen (arriving at 6:01 p.m.), Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Dr. Rinne. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Expression of Appreciation to Mayor's Youth Council and State of the Youth report. Jan Spires, Mayor's Youth Council Coordinator, welcomed the Mayor's Youth Council members and their families and introduced Kadi Davis, Youth Council Chair. Ms. Davis provided a State of the Youth report, which focused on the topic of teamwork, and described various activities the group participated in during the past year. She noted one issue they concentrated on, which was to help raise funds to bring Miss Cheyenne Blokker of the Netherlands to visit Cheyenne. Mayor Kaysen and Ms. Spires commended members of the 2012-2013 Youth Council for their accomplishments and presented them with a certificate and gift of appreciation. Those recognized were Juliette Givhan - Vice-Chair, Tyler Bedwell, Savannah Brown, Jon Chenchar, Alex Cole, Ian Dome, Alex Farkas, John Matsen, Rachel Moseley and Jacob Peterson. Ms. Davis was also presented with a plaque and gift of appreciation recognizing her service during the past school year as chair of the Youth Council. Mayor Kaysen further expressed appreciation to members for their time, commitment and dedication, and thanked the members' families for their support.

Consent Agenda. (All agenda items listed with the designation of contained [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Cook, and pursuant to support received by Mr. Allen and Ms. Broyles, agenda item #24(h) was removed from the Consent Agenda. Upon request by Mr. Brown, and pursuant to support received by Mr. Allen and Ms. Broyles, agenda item #25(a) was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 13, 2013. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties and septic and commercial waste

dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Upon inquiry pertaining to a letter received by governing body members from Edward Strader, questioning the assessment of water rates for multi-family units vs. single family residences, Tim Wilson, Director, Board of Public Utilities (BOPU), explained the water rate structure. He advised the current structure was established and adopted by the governing body in 2004, noting it was developed through use of an outside consulting firm in conjunction with the BOPU Master Plan, and provides for tiered water rates. He explained the different categories of water users and how each rate is designed to meet costs associated with providing services to the different types of customers and not on the number of people that occupy a building, lot size or number of families in a building. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Cook, Mr. Luna, and Ms. Williams voting "no."

ORDINANCE - Amending the City of Cheyenne's Sanitation Fee Schedule. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to approve on second reading, seconded by Ms. Broyles. Comments followed regarding expenses the fees help cover for numerous City services and operations; awareness that some departmental services do not generate revenue, and concern with non-competitive wages and employee turn-over. Ms. Broyles moved to amend to provide for a 3.4% increase in the sanitation fee schedule with a directive that all full-time City employees, with the exception of uniformed Fire and Board of Public Utilities employees, current and future will be compensated at a minimum of not less than \$12.00 per hour effective July 1, 2013, seconded by Mr. Allen. It was advised that currently there are approximately 36 employees who would be affected by the amendment. Joe Dougherty, Cheyenne Transit Director, spoke in support of the amendment and requested that permanent part-time Transit employees also be considered relative to the intent of the amendment. Rich Wiederspahn, Human Resources Director, and Jim Elias, Public Works Director, spoke in favor of the amendment, commenting on the difficulty of attracting employees at the City's current starting salary, which is \$10.50-\$11.00 per hour. Upon inquiry, Lois Huff, City Treasurer, provided information on estimated cost to implement the change if the amendment was approved. Upon inquiry, Dan White, City Attorney, clarified the amendment being proposed is considered an oral amendment to the motion to approve on 2nd reading, essentially earmarking a certain amount of fee revenue to be used to set a minimum wage for City employees at \$12.00 per hour, and if approved, language will be added to the ordinance that will be included on 3rd reading of the ordinance. Ms. Broyles clarified her motion did not include permanent part-time employees. Upon inquiry regarding the definition of a permanent part-time employee, Rich Wiederspahn explained there are part-time employees whose positions are considered to be permanent positions and have an expectation of employment over time versus seasonal employees who are considered temporary employees. Discussion topics included: Comments in support as well as non-support of the amendment; computing costs to include permanent part-time employees; diverting income streams for the purpose of the amendment; transparency in accounting relative to sanitation fees; suggestion of forming a task force to study and evaluate the sanitation revenue structure, and the different types of sanitation fees. Upon inquiry, Mr. Elias provided information available on automated vs. prior manual sanitation pick-ups relative to changes in manpower, and current constraints involving labor and equipment to expand recycling program services. Upon further inquiry regarding use of temporary labor services, such as LaborReady contractual services, Mr. Elias advised of the per hour cost to the City to hire temporary personnel through an employment agency and types

of work areas assigned to temporary personnel. Mr. Brown raised a point of order that a discussion topic involving sanitation tipping fees was not germane to the motion to amend on the floor with Mayor Kaysen advising discussion should pertain to the motion to amend topic. Following further comments on effect of the amendment on employees generally, motion to amend carried. Voting "yes" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Valdez and Mayor Kaysen. Voting "no" -- Mr. Luna, Mr. Shanor and Ms. Williams. Upon further inquiry, Mr. Elias explained that temporary labor individuals (i.e. utilized through an employment agency) are not City employees; receive no City benefits; that background checks and liability fall under the agency's responsibility and policies; that those individuals can not operate City vehicles; that duration of services is based on labor needs, and that in addition to utilization of temporary labor for Sanitation, other City departments also utilize this option for labor assistance on a temporary basis. In response to Ms. Williams comments involving various sanitation service areas, Mayor Kaysen requested she submit her questions in writing to Mr. Elias to provide for complete and accurate answers. Comments of concern followed on sanitation operational costs, evaluation and transparency of same, and sanitation fee revenue being used to defray general fund expenses for sanitation as well as other departmental expenses. Main motion as amended carried. Voting "yes" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Valdez and Mayor Kaysen. Voting "no" -- Mr. Cook, Mr. Luna, Mr. Shanor and Ms. Williams.

ORDINANCE - Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2013, and ending June 30, 2014. A summary of proposed funds and budget amounts are as follows: General Fund \$54,661,323; Weed and Pest \$516,000; Youth Alternatives Grants \$391,602; Community Facility Fees \$151,000; Recreation Programs \$1,111,000; Community Development Block Grant \$651,581; 1% Sales Tax Fund \$12,607,309; Solid Waste Management Fund \$7,560,110; Law Enforcement Grants \$179,609; Transportation Planning \$828,209; FTA Transit Grant \$1,982,001; Juvenile Justice \$311,757; Special Friends \$134,173; Special Purpose Option Tax \$167,446; Youth Activities \$13,100; Golf Facilities \$200,000; Civic Center \$993,393; Ice and Events Center \$510,242, and Cemetery Perpetual Fund \$20,000 -- Total City proposed budget \$82,989,855. Water Department \$27,942,800, and Sewer Department \$13,133,400 -- Total Board of Public Utilities proposed budget \$41,076,200, for a total proposed budget appropriation of \$124,066,055. Following a five minute recess, Mayor Kaysen reconvened the meeting at 7:30 p.m. Lois Huff, City Treasurer, advised she had issued a memo on this date to governing body members addressing concerns raised at the Committee of the Whole meeting regarding recurring revenues. She reviewed certain pages of the budget book that have been revised to move \$263,802 of expenditures from the Special Distribution line item (state funding) to the Impact Assistance Distribution line item, which is not restricted in use. Rick Parish, Director of Parks and Recreation, and Rich Wiederspahn, Director of Human Resources, commented in support of the proposed cost of living salary adjustment (COLA) for City employees, noting municipal services provided and dedication by employees. Included in Mr. Wiederspahn's comments was a request for separate consideration of the issue of a COLA apart from the Employee Investment Study (EIS), which has not yet been received in final form from the consultant and involves new proposed salary ranges for job positions. Also speaking in favor of the COLA was Joe Dougherty, Director of Transit, who spoke in favor of providing the COLA to full-time and permanent part-time employees, and Sara Vasquez, Cheyenne Public Employees Association (CPEA) President and Assistant Director of Purchasing. Ms. Vasquez encouraged City Council

members to not consider the topics of a COLA and the EIS in the same category, and to wait until the EIS recommendations have been received to address any salary adjustment implementation plans. She spoke in favor of the proposed 2.25% COLA as initially presented in the budget, and expressed concerns with potential unequitable employee salary adjustments due to the amendment made at the Committee of the Whole meeting; pending firefighter labor union arbitration involving salaries; Board of Public Utilities (BOPU) employee salary increases, and effect of the amendment passed earlier in the meeting with regard to the Sanitation fee ordinance. Reporting for Committee of the Whole (COW), Ms. Broyles moved to approve on 2nd reading, seconded by Mr. Allen. Pursuant to COW recommendation, Ms. Broyles moved to amend as follows: “...That to the extent the various line items in Section 1. of the budget ordinance include the appropriation of funds necessary to provide the proposed 2.25% pay increase for City employees, said funds be held in reserve until the Employee Investment Study is received and that said funds be re-appropriated from reserves at such times and subject to such terms and conditions as the governing body shall determine, provided, however, that this amendment shall not apply to those line items in Section 1. of the budget ordinance which include provisions for the compensation of firefighters who are members of I.A.F.F. Local #279 or to those line items in Section 1. which include provisions for the compensation of employees of the Board of Public Utilities. The 2.25% increase for the firefighters would not become effective until after an arbitration award is entered.” Mr. Shanor seconded the motion. Following comments, Mr. Cook moved to amend the amendment to incorporate a .50 cent per hour increase across the board for all full-time employees effective July 1, 2013. Upon inquiry, Mr. Cook confirmed Board of Public Utilities and firefighters (union) employees would not be addressed as part of the motion. Pursuant to a point of clarification raised by Mr. Allen regarding wording of the motion, and upon request by Mayor Kaysen, Carol Intlekofer, City Clerk, recited the wording of the motion to amend the amendment. Mr. Brown raised a point of order questioning whether the intent of the motion was to replace the previous pending (COW) amendment or if it was intended to somehow run concurrent with the previous motion to amend. Mr. Cook verified the intent of the motion is to propose a .50 cent salary increase in lieu of the proposed 2.25% COLA and replace the previous amendment on the floor. Mr. Brown seconded Mr. Cook’s motion to amend the amendment. Dan White, City Attorney, cautioned that if the second amendment is intended to replace the first amendment, it may have an effect on firefighters and BOPU employees, stating he was not certain that City Council has the ability to micro-manage BOPU with regard to its employees’ salaries and he also was not certain what effect the second amendment would have on firefighters’ salaries. Mr. Dougherty commented in support of the second amendment also including permanent part-time employees. Discussion followed and included the following topics: Proposed .50 cent per hour increase vs. 2.25% COLA; amendment(s) not including firefighters at this time due to current ongoing arbitration; past BOPU employee study that had been conducted; 3.4% consumer price index rate relative to the proposed 2.25% COLA; value and priority recognition of employees; systemic problem relative to an on-going plan for salary compensation adjustments; history leading to the EIS being conducted and implementation procedure envisioned, and status of anticipated receipt of the EIS. During discussion Ms. Huff advised the cost was approximately the same between a .50 cent or 2.25% COLA, as computed on the number of full-time employees only, and verified all employees are paid on an hourly basis with some being classified as salaried positions. Tim Wilson, Director, Board of Public Utilities, advised the Board has approved a 2.25% increase for its employees, consistent with what was being proposed in the City’s budget, to be effective July 1, 2013. He provided information pertaining to the BOPU comprehensive analysis on employee positions and salaries conducted by an outside firm a few years ago, noting annual review of compensation levels is conducted on a regional market basis. Pursuant to comments on the EIS, Mayor Kaysen provided an update on the study, advising the consultant planned to be in Cheyenne next month and is working on completion of the three step study plan, and a work session with City

Council would be scheduled. He further explained the time frame to receive the study was longer than anticipated as the consultant had to re-build the nearly 20-year old current compensation plan. Point of clarification on the motion to amend the amendment, relative to the first motion to amend (i.e. COW recommended amendment), was raised by Ms. Broyles, who noted her concern that each motion to amend should be voted on separately, particularly due to pending firefighter arbitration and for fairness reasons. Mayor Kaysen advised if the second amendment is approved, it would replace the first motion to amend, and that procedure-wise following the vote on the motion to amend the amendment, then a vote would then be called for on the initial motion to amend, potentially as amended. Continuing discussion included comments on: Focusing on dollars and certain levels of compensation and market value prior to deciding on any per hour raise amount; support and non-support of the motion to amend the amendment, and concern that the pending motion should exclude BOPU and fire union employees. Mr. Cook requested his motion to amend the amendment be withdrawn, advising a different amendment may then be proposed to exclude BOPU and firefighters. Mr. White stated Robert's Rules of Order is clear that once a motion has been made and seconded, the motion is the property of the City Council as a whole and can not be withdrawn in the absence of unanimous consent. Mr. White reviewed the options available to address Mr. Cook's request, which were to either unanimously agree to Mr. Cook's request to withdraw his motion, or to vote on his motion to amend the amendment. Following a point of order raised by Mr. Allen questioning whether discussion had been closed, Mayor Kaysen called for further discussion by Council members. Pursuant to inquiry involving the length of time since the last COLA for employees was approved, Mayor Kaysen provided information involving the history of COLA adjustments and one-time salary increases since 2009; budget constraints and revenue shortfalls in the subsequent fiscal budget year since that COLA which affected the ability to provide increases, noting employee staffing reductions also occurred at that time, and an across the board adjustment of \$1,000 effective July 1, 2011. He advised employees have not received any type of compensatory relief since then as funds have not been available, citing restrictions placed on recent state funds allocated to municipalities and noting that through the FY2014 budgeting process, revenue projections vs. expenses determined the budget could support a 2.25% COLA. Upon further inquiry, Mayor Kaysen reviewed the history and initiation of the EIS, which was funded by employee health insurance savings and was pursuant to a request to conduct the study from employee groups. He further informed that an employee committee, excluding himself, was formed and the group interviewed responders to the EIS request for proposals; that the effort is employee-driven and the committee is still involved, and that it is envisioned that some employees will be involved as part of the EIS implementation team once the study is received. Upon query, Ms. Vasquez stated that CPEA had initially requested an across the board increase for the upcoming fiscal year and that CPEA can support either the proposed across the board increase or COLA. Motion to amend the amendment failed. Voting "no" -- all members of the governing body present. Mr. Cook moved to amend the amendment to approve a .50 cent an hour raise across the board for full-time employees. Mr. White stated it would be helpful if the wording of the proposed amendment were clearly defined relative to how the proposed amendment would change existing wording to the initial motion to amend (i.e. COW recommended amendment). Mr. Brown raised a procedural point of order stating his preference to separately address actions on the amendments. Mr. Cook indicated he would not move forward with completion of the wording of his motion. Mr. Shanor moved to amend the amended budget (re: COW recommended amendment), explaining the proposed amendment is silent as to the current amendment so that anytime it's silent the remaining portions in the current amendment would remain in effect, as follows: "...The funds regarding employee raises placed into reserves by the current amended budget be instead placed as a line item in the budget to be spent on employee raises in FY2014 upon receipt of information regarding where each employee salary is compared to market

value from the consultant currently working on our employee investment study. Under the current employee classifications, any employee whose salary is determined by the consultant to be 2.25% or more under maximum market value will be given a 2.25% raise immediately, retroactive to July 1, 2013. Any employee whose salary is determined by the consultant to be 2.24% to .1% under maximum market value will be given a raise in a percentage that will bring that employee equal to maximum market value but not over. If any of these designated funds remain after raises are given, such remainder shall be placed in reserves and utilized to implement an employee investment plan in the FY2015 budget.” Mr. Allen seconded the motion. Ms. Vasquez commented on a past BOPU position and compensation study and spoke in support of the 2.25% COLA. Mr. Wiederspahn explained the market survey portion of the EIS study was used to determine the pay plan and that the value of a particular position, specific to the City of Cheyenne, was then determined through the consultant’s process which included employees’ questionnaires; discussions with supervisors and 10 factors utilized by the consultant to establish a particular range for a position and determine the value of a position. He discussed elements involved in the different factors; how changes in the market (range) can occur, and cautioned the Council against being in the position of giving tacit approval of the final study data which has not yet been seen or accepted. Pursuant to comments concerning request for clarity of the proposed motion, Mr. Shanor verified his proposed motion to amend the amendment does not alter the first motion to amend (as recommended by COW), and would be an addition to the wording contained in the motion to amend. Mr. Brown raised a point of order requesting verification that no amendments have yet passed and questioned the motions on the floor. Mayor Kaysen confirmed that no motions involving amendments have passed. Mr. White explained that Mr. Shanor’s proposed amendment is intended to add to, and not change, the existing wording of the recommended amendment from COW. Mayor Kaysen advised of the motions before the body (i.e. motion to amend (per COW recommendation) and subsequent motion to amend the amendment; explained procedurally the order in which the amendments would be acted upon, and confirmed there were only two pending amendments. Upon request, Mr. Shanor recited his motion to amend the amendment. Continuing discussion included the following topics: Support and non-support of the motion to amend the amendment; consultant being tasked with analysis of each position/salary area in more finite detail than initially envisioned; comments that BOPU and firefighter positions should be excluded from the amendments; support for employees and recognition of addressing salary inequities; amount of funds available to implement the proposed amendment(s) and prioritizing of same; long-range plan addressing compensation; compensating those employees under market value; time frame that will be needed to completely put into effect all of the changes affiliated with the EIS; timely adjustment for employees; working toward having a compensation plan in place for FY2015 following receipt of the study; effect of the amendment(s) on employee salaries relative to unknown study data yet to be received and approved; EIS providing a minimum/maximum salary range for positions; review and approval of the EIS recommendations by the governing body, and unknown result of possible firefighter salary adjustments due to pending arbitration. Pursuant to request during discussion, Ms. Intlekofer read the initial motion to amend (i.e. COW recommended amendment). Upon inquiry, Ms. Huff advised that calculating salaries per the proposed motion on the floor will be labor and time intensive to complete; Mayor Kaysen provided information on the intent of the EIS, verifying that no current salaries would be adjusted “down” based on the new pay ranges, and components of the study involving market analysis and development of a compensation plan based on that data, and employee involvement during the EIS process. Mayor Kaysen also provided information, per request, concerning the consultant’s professional services agreement, which was approved through the City Council agenda process. Ms. Broyles moved to strike the last sentence in the motion to amend (i.e. COW recommended amendment) referencing that the 2.25% increase for

firefighters wouldn't become effective until after an arbitration award. Mr. White clarified the intent of the effect of the proposed amendment as recommended by COW with regard to firefighter and BOPU employees, and stated it is legally important to keep the 2.25% for firefighters in the budget by retaining the last sentence in the COW recommended amendment. He further stated his opinion that based on specific state statutes relative to the Board of Public Utilities and its employees, the City Council does not have the right to micro-manage BOPU with regard to salary amounts for its employees. No second to the motion was received, and it was noted the motion on the floor was to amend the amendment, not the initial motion to amend. Upon inquiry, Mr. Wiederspahn stated the consultant has indicated that market values can fluctuate based upon adjustments to the economy, and provided information on the minimum, mean and maximum levels of pay ranges, noting specific market data is not available for all positions; factors involving determination of the worth of a position, and evaluation factors that will involve the City's decision on how to implement the plan with regard to placement of positions (salaries) within the ranges. Motion to amend the amendment carried. Voting "yes" -- Mr. Allen, Mr. Cook, Mr. Luna, Mr. Shanor and Ms. Williams. Voting "no" -- Mr. Brown, Ms. Broyles, Mr. Valdez and Mayor Kaysen. Motion to amend as amended carried. Voting "yes" -- Mr. Allen, Mr. Cook, Mr. Luna, Mr. Shanor and Ms. Williams. Voting "no" -- Mr. Brown, Ms. Broyles, Mr. Valdez and Mayor Kaysen. Main motion as amended failed. Voting "yes" -- Mr. Allen, Mr. Luna, Mr. Shanor and Ms. Williams. Voting "no" -- Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Valdez and Mayor Kaysen.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-2 Medium Density Residential - Developing District to NR-3 Neighborhood Residential - High Density District for Lot 14, Block 1, Saddle Ridge, Fifth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Countryside Avenue and Medicine Man Trail). Reporting for Public Services Committee, Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending various Sections of Title 8, Health and Safety, Chapter 8.08, Alarm Systems, of the Cheyenne City Code pertaining to Alarm Devices and Systems, and False Alarms. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Upon inquiry, Police Chief Brian Kozak advised notification by letter to known alarm companies that will be affected will be provided if the ordinance is approved, noting information will also be updated on the website. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Cook voting "no".

ORDINANCE - Granting a Franchise by the City of Cheyenne to Cheyenne Light, Fuel and Power Company, its successors and assigns, the right to furnish, sell and distribute natural gas to the City and to all persons, businesses, and industry within a portion of the City in Cheyenne Light, Fuel and Power Company's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute natural gas within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending Chapter 5.12, Alcoholic Beverages, Section 5.12.030(A), Application–Fees–Procedures, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code to authorize one (1) additional dispensing room for restaurant liquor licensees upon application to and approval by the Governing Body of the City of Cheyenne pursuant to the provisions of Wyoming Statute §12-4-410(b), as amended, effective July 1, 2013 -- referred to Finance Committee (sponsor -- Mr. Brown).

ORDINANCE - Amending Ordinance No. 3951 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne -- referred to Finance Committee (sponsors -- Mr. Brown and Mayor Kaysen).

ORDINANCE - Amending Ordinance No. 3952 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department -- referred to Finance Committee (sponsors -- Mr. Brown and Mayor Kaysen).

[CA] RESOLUTION - Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant, for the purpose of assisting in providing the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311. Motion (per Consent Agenda) carried. (#5493)

[CA] RESOLUTION - Approving the budget of the Downtown Development Authority for the Fiscal Year beginning July 1, 2013 and ending June 30, 2014. Motion (per Consent Agenda) carried. (#5494)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5495)

[CA] RESOLUTION - Approving Outside User Water/Sewer Services by User's Agreement with Cronimet Holdings, Inc., Lot 2, Block 1, Swan Ranch Rail Park, Second Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor -- Mr. Valdez).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Fifth Filing, a replat of all of Block 7, and a portion of Countryside Avenue, Saddle Ridge, Cheyenne, Wyoming (located at the northwest corner of the intersection of Wilderness and Medicine Man Trails) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Adopting the 8th Avenue Corridor Plan -- referred to Public Services Committee (sponsors -- Mr. Allen and Ms. Williams).

[CA] Preliminary Plat for Polk Addition, a replat of portions of Tract 145-148, Sunnyside Addition, Fifth Filing, Cheyenne, Wyoming (located at the northeast corner of East Pershing Boulevard and Polk Avenue). Motion to acknowledge receipt (per Consent Agenda) carried.

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No.1 for School Resource Officer for summer school 2013. Motion (per Consent Agenda) carried (revenue to the City \$5,248.00 plus overtime costs). (#6004)

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for use of the land known as the "South 40" located off Missile Drive and owned by F.E. Warren Air Force Base for public transportation service during the 2013 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6005)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District No. 1 for use of buses owned by the Laramie County School District No. 1 for public transportation service during the 2013 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6006)

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for use of buses owned by the Laramie County School District No. 1 for public transportation service during the 2013 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6007)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for usage of City-owned land and buildings for parking, camping and other activities associated with the 2013 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6008)

[CA] Memorandum of Understanding between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District No.1 to provide transportation services for the City's Summer Recreation Camp Program. Motion (per Consent Agenda) carried. (#6009)

[CA] Use Agreement between the City of Cheyenne and Union Telephone Company for limited use of the public right-of-way for the installation of fiber optics, and setting a fee (revenue to City). Motion (per Consent Agenda) carried. (#6010)

Professional Services Agreement between the City of Cheyenne, Sanitation Division, and DesertMicro, Jacksonville, Florida, for City sanitation trucks Global Positioning System (GPS) waste management and hauling software. Mr. Brown moved to approve in an amount not to exceed \$210,953.80, seconded by Mr. Valdez. Upon inquiry, Jim Elias, Public Works Director, advised the GPS system will help automate route mapping and establish more efficient cost-saving routes, and explained the agreement has been structured to provide for a not to exceed dollar amount, noting following review some add-on options may not be utilized which would lower the amount. He provided general information on functions of the GPS system, including truck-mounted cameras, and other system benefits which will help recover costs, and provide for safety measures and more efficient and effective operations. Comments followed on cost of the system, including on-going costs, and implementation of the system anticipated to save money, and improve service and safety. Motion carried. Voting "yes" -- all members of the governing body present. (#6011)

[CA] Memorandum of Understanding between the City of Cheyenne, Engineering Department, and Laramie County School District No. 1 for the construction of storm sewer improvements on East Pershing Boulevard (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and RubinBrown LLP, Denver, Colorado, to Audit the Financial Statements of the City of Cheyenne, Wyoming -- referred to Finance Committee.

Amendment No. 3 to Contract No. 4353 between the City of Cheyenne and the Department of the Air Force, Frances E. Warren Air Force Base Wyoming, for U.S.A.F. owned land known as the "South 40" located off Missile Drive to be used and operated as a parking lot for public transportation services during the 2014, 2015, 2016, 2017, and 2018 Cheyenne Frontier Days Celebrations. Dan White, City Attorney, advised it had been noticed that the contract contains some incorrect wording and the Air Force has advised they would like to enter into a new contract, which will be introduced on the agenda at a future date, instead of amending the current one, and he requested the item be withdrawn. Upon inquiry and with no objection being raised by City Council members, Mayor Kaysen announced the item was being withdrawn.

[CA] Contract Modification No. 1 to Contract No. 5903 between the City of Cheyenne, Parks and Recreation Administration, and Pioneer Construction Co., Inc., Cheyenne, Wyoming, to complete the Pioneer Park Concessions/Restroom Facility (Parks Projects funding). Motion (per Consent Agenda) carried (amount not to exceed \$14,875.02). (#5903)

[CA] Contract Modification No. 1 to Contract No. 5868 between the City of Cheyenne, Parks and Recreation Department, and S&S Builders, LLC, Cheyenne, Wyoming, for Holliday Park Connector Project to reduce the remaining retainage to 5% of the most recent payment request (2007-2010, 2011-2014 1% Sales Tax & 1% Specific Purpose Tax). Motion (per Consent Agenda) carried. (#5868)

Contract Modification No. 2 to Contract No. 5394 between the City of Cheyenne, Public Works Department, Facilities Maintenance Division, and Ameri-Tech HVAC Services to exercise the option clause extending the current contract for mechanical, heating, ventilating, and air conditioning system maintenance for City buildings. Mr. Brown declared a conflict of interest (business interest) and vacated Council Chambers. Ms. Broyles moved to approve, seconded by Mr. Valdez. Comment followed on the terms of the contract affiliated with renewal options. Upon inquiry, Jim Elias, Public Works Director, advised as this is a contract modification to the existing contract no request for bids was issued; provided information on the number of bid packages issued for the initial contract that resulted in one bid being submitted, and explained when the term of the modification expires in two years, re-bidding for services will occur. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers with the exception of Ms. Williams voting "no". Following announcement of the vote, Mr. Brown returned to Council Chambers. (#5394)

[CA] Consideration of Bid #R-25-13 for furnishing small equipment for a new fire and rescue truck for the City of Cheyenne, Fire and Rescue Department (2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Front Range Fire Apparatus, Longmont, CO, in an amount not to exceed \$38,516.00).

[CA] Consideration of Bid #M-13-13 for a contract for the Fiscal Year 2013 City Overlay Project between the City of Cheyenne, 1% Construction Division, and Simon Contractors, Inc., Cheyenne, Wyoming (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-14-13 for a contract for the Fiscal Year 2013 concrete for Street & Alley Overlay Part "A" Project between the City of Cheyenne, 1% Construction Division, and Simon Contractors, Inc., Cheyenne, Wyoming (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-28-13 for furnishing four new 2013 vehicles for the Parks & Recreation Department (2 for Parks Division, and 2 for Recreation Division) (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-26-13 for furnishing one new 2013 regenerative air sweeper and chassis for the City's Street & Alley Division (2007 - 2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-27-13 for furnishing one new dual solid drum articulating vibratory roller for the City's Street & Alley Division (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

Re-Appointment of Joe Bonds to the Board of Public Utilities. Mr. Allen moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointments of James Murphy to the Board of Public Utilities, and Carol Busbee, to the Mayor's Council for People with Disabilities. Mr. Allen moved to approve, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made that the local Wyoming Chapter for Multiple Sclerosis (MS) will be sponsoring a Calcutta to be held June 20, 2013 beginning at 6:00 p.m. at Alf's Pub and Package Liquor, 1622 East 19th Street, Cheyenne, Wyoming, in conjunction with the MS Society/Alf's Pub Golf Tournament (15% of proceeds to benefit the local MS Society).

Announcement was made that the Cheyenne Frontier Days Wild Horse Race Committee will be sponsoring a Calcutta to be held July 18, 2013 beginning at 7:00 p.m. at The Redwood Lounge, 2105 East Lincolnway, Cheyenne, Wyoming, in conjunction with the Cheyenne Frontier Days Wild Horse Races (15% of the proceeds to benefit the CFD Scholarship Program).

Announcement was made of a Public Hearing to be held June 10, 2013 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's Office for Anong Larsen and Brett Larsen d/b/a Anong's Thai Cuisine, 620 Central Avenue, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held June 10, 2013 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comments regarding the intent of the City of Cheyenne to submit an application to the Wyoming Business Council's Business Ready Community, Downtown Development Grant Program, for funding for the Capital Basin Flood Control Project (Trunkline Interceptor).

Announcement was made of a Public Hearing to be held June 10, 2013 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2014.

Under other business, Mayor Kaysen recognized the presence of County Commissioner Buck Holmes at the meeting, and Mr. Shanor expressed appreciation to members of the public and City Council for their input and professional debate during the meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 10:03 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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